

01426688	Sanburg – Trust	TENTATIVE RULING Case: Sanburg – Trust 01426688 Calendar No: 8 Date: 07/29/26 MOTION TO COMPEL DISCOVERY RESPONSES (ROA 198) On 12/1/25, Petitioner Paula Sanburg Ruby (“Petitioner”) filed the instant Motion to Compel, seeking an order compelling initial responses to form and special interrogatories and requests for production, as well as an order deeming requests for admission admitted. (ROA 198.) In Opposition, Respondent Marlene Kerbis (“Respondent”) states that she timely served responses on 11/24/25 by mail. (ROA 266.) In her Reply, Petitioner concedes that responses were timely served and explains that she had not received the responses at the time she filed the motion. (ROA 278.) Petitioner states that the discovery responses were deficient and requests that the court issue an order compelling further responses. The service of untimely responses after a motion to compel has been filed does not moot the motion to compel, and the court maintains the discretion to determine the sufficiency of the responses. Whether a particular response does resolve satisfactorily the issues raised by a motion [to compel] is a matter best determined by the trial court in the exercise of its discretion, based on the circumstances of the case. In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion. The trial court might compel responses without objection if it finds no legally valid responses have been provided to one or more interrogatories; it might deny the motion to compel responses as essentially unnecessary, in whole or in part, and just impose sanctions; it might treat the motion as one under section 2030.300 and either determine that further answers are required, or order the propounding party to “meet and confer” (§ 2030.300, subd. (b)) and file a separate
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statement (Cal. Rules of Court, rule 3.1020(a)(2), (c)); or it might take the motion off calendar, thereby requiring the propounding party to file a motion under section 2030.300.

(*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* ("Sinaiko") (2007) 148 Cal.App.4th 390, 409, emphasis added.)

In *Sinaiko*, the discovery responses were *untimely* served after a motion to compel had been filed. (*Id.*) Thus, the court stated that it was not bound by the time limitation for compelling further responses (i.e., the 45-days from service). (*Id.* at p. 405-406.)

Here, Respondent *timely* served responses to the discovery before the instant motion was filed, thereby triggering the 45-day time limit set forth in Code of Civil Procedure sections 2030.300(c) and 2031.310(c). The 45-day time limit to compel further responses to discovery is jurisdictional, rendering the court without authority to order further responses. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1411.)

Based on the foregoing, Petitioner's motion to compel is **DENIED**.

The party prevailing on a motion to compel discovery is entitled to monetary sanctions, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances would make the imposition of sanctions unjust. (Code Civ. Proc. §§ 2030.290(c) and 2031.300(c).)

In her Reply, Petitioner asks that the court deny Respondent's request for sanctions because Petitioner acted in good faith. However, there is no "good faith exception" to the sanctions required by the Discovery Act. The court finds that the motion was made without substantial justification (i.e., without basis in law or fact) and finds no other circumstances that would make the imposition of sanctions unjust. Upon receipt of the discovery responses, Petitioner should have withdrawn this motion and met and conferred regarding the timely discovery responses that had been served.

Based on the foregoing, the court imposes sanctions against Petitioner in the amount of **\$3,815.00** for the attorney's fees incurred by Respondent in opposing this motion. Petitioner shall pay said amount to Law Stein Anderson, LLP within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing.

		Counsel for Respondent is ordered to file and serve a Notice of Ruling.
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